

The Goa, Daman and Diu Administrative Tribunal Rules, 1968

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[Rule THE-GOA-DAMAN-AND-DIU-ADMINISTRATIVE-TRIBUNAL-RULES-1968 of 1968](#)

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[The Goa, Daman and Diu Administrative Tribunal Rules, 1968](#)

[Published vide Notification No. LD/N/14/66/67-68, dated 8-2-1968](#)

[No. LD/N/14/66/67-68. - In exercise of the powers conferred by Section 13 of the Goa, Daman and Diu Administrative Tribunal Act, 1965, the Lieutenant Governor of Goa, Daman and Diu hereby makes the following rules namely:-](#)

[1.](#)

[Short title.](#)

[\(1\)](#)

[These rules may be called the Goa, Daman and Diu Administrative Tribunal Fees Rules, 1968.](#)

[\(2\)](#)

[They shall come into force on 1st February, 1968.](#)

[2.](#)

Rates of Court and Other Fees.

- In appeals and other proceedings instituted before the Tribunal, the rates of court fees and processes and other fees shall be as indicated in the schedule appended hereto.

3.

Fees for Audit of Accounts.

- The fee chargeable by the Tribunal from an institution whose accounts are to be audited, shall be one percent of the total income of the institution for the year in question, provided however that the total fees shall, in any case, not exceed Rs. 200/-.

4.

Payment of Fees of Experts.

- The fees and other allowances payable to experts appointed in connection with the proceedings before the Tribunal, shall be paid by the party appointing the expert. The fees of a neutral expert appointed by the Tribunal or at its instance, shall be borne equally by both the parties, subject to the orders, if any, relating to costs, passed by the Tribunal.

5.

Pending proceedings.

- These rules shall not apply to proceedings instituted before their commencement, which shall be regulated by the rules in force prior to their commencement.

6.

Repeal.

- As from the commencement of these rules, the corresponding rules of the R. A. U., Provincial Legislative Diploma No. 252, dated 25-2-1927 and Rule 3 of the Goa, Daman and Diu Administrative Tribunal Rules, 1966, shall stand repealed.

Schedule

Part I ? Court Fees

Nature of proceedings

Rate of Fees

Exemptions

1

2

3

(1)

Petition of or memorandum of appeal

Rs. 50/-

Proceedings instituted by The State, the Government Pleader, the Procurador de Republica or his Delegate or the head of the Taluka Revenue offices, Administradores of Concelhos, Comunidades, or religious endowments in their official capacity.

(2)

For the recording of evidence

Rs. 25/- together with expenses of a Commissioner if appointed

- do -

Note: The exemption does not apply to fees of the Commissioner which would have to be paid in the first instance by the party at whose instance it is issued.

(3)

For local enquiry inspection or survey

Rs. 25/-

- do -

(4)

To bring heirs on record

Rs. 25/-

- do -

(5)

For local enquiry inspection or survey when a second enquiry, inspection or survey is ordered in respect of the same subject matter

Rs. 50/-

- do -

(6)

Petition for review

Rs. 25/-

- do -

(7)

Other petitions or applications to the Tribunal

50 paise

- do -

The fees in respect of all the above items shall be payable by means of Court Fee Stamps.

Part II ? Copying Fees

For a certified copy

Fifty paise per page or part thereof.

For a summary of the proceedings

Re. 1/- per page or part thereof.

Explanation 1 :- For the purposes of this rule a page should consist of 25 lines of 10 words each amounting to about 250 words.

Explanation 2 :- For a typed copy, double the above rates shall be charged.

Part III ? Process Fees

Fees for the issue of notices and process

The actual postal charges.

Fees for the summoning of record

The actual postal charges.

Part IV ? Miscellaneous

When at the instance of a party, the Tribunal or any of its staff has to proceed outside headquarter for any purpose other than for the service of summons, the actual travelling and other expenses shall be deposited by the party.

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